

ALSO SEE Newsletter of February 28, 2025

[doc. web n. 10105764]

Provision of December 12, 2024

Register of provisions

n. 774 of December 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia, members, and Dr. Claudio

Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC

(General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code on the protection of personal data (Legislative Decree of June 30, 2003, n. 196), as amended by Legislative Decree of August 10, 2018, n. 101, containing provisions for the adaptation of the national legal system to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

WHEREAS

With acts n. 158162 of November 25, 2023 (file 178557), n. 25394 of February 29, 2024 (file 173400) and 158163 of November 25, 2023 (file 262138), which must be understood as fully referenced and reproduced herein, the Office initiated, pursuant to Article 166, paragraph 5 of the Code, three proceedings for the adoption of the measures referred to in Article 58, paragraph 2 and the administrative pecuniary sanctions referred to in Article 83, paragraphs 4 and 5 of the Regulation against Wind Tre S.p.A. (hereinafter "Wind Tre" or "the Company").

In particular, the first proceeding (file 178557) originates from an official verification aimed at monitoring the processing activities carried out for promotional purposes within the broader activities to combat aggressive telemarketing.

The other two proceedings, on the other hand, originate from two complaints related, in one case, to the sending of promotional communications without consent (file 173400) and, in the other, to a violation of personal data (file 262138).

The three proceedings, initiated separately against the same data controller, concern issues of the same nature (the processing of data for promotional purposes and the adequacy of technical and organizational measures); therefore, in order to promote their comprehensive examination and implement the principles of efficiency and speed referred to in Article 9 of the internal regulation n. 1/2019 (at www.gpdp.it, doc. web n. 9107633), it was deemed appropriate to jointly address the acts pursuant to and for the effects of the subsequent Article 10 of the same regulation.

In this case, moreover, the joint treatment appeared more suitable to guarantee the right of defense and the need not to aggravate the proceeding.

PROCEEDING 178557

1. THE INSTRUCTION ACTIVITY CARRIED OUT

The proceeding originates from an investigation initiated ex officio by the Authority in the context of the supervisory tasks identified by Article 57, paragraph 1, letter a) of the Regulation, in direct connection with the outcomes of provision n. 143 of July 9, 2020 (at www.gpdp.it, doc. web n. 9435753) with which, among other things, prescriptions were issued to the Company pursuant to Article 58, paragraph 2, letter d), of the Regulation.

In particular, within the investigations initiated to combat the phenomenon of illegal telemarketing, an inspection activity was carried out at Wind Tre on October 10 and 11, 2022.

During these checks, the Company described the measures adopted for the implementation of telemarketing campaigns, stating that the current operational methods would soon be replaced by stricter procedures aimed at achieving total control of the supply chain and avoiding the execution of unauthorized promotional activities unknown to the data controller.

The activity allowed for the verification, by directly accessing the systems, of the functioning of the existing procedures starting from specific contracts activated in the previous month, for which documentation of the lawfulness of the related contacts was requested; moreover, some numbers that had been reported to the Guarantor were verified; in particular, during the inspection, the Authority's officials handed over to Wind Tre all the reports received during the period from October 2021 to September 2022, asking the data controller to provide comments in this regard. Some checks were carried out on-site on a small sample of such reports.

Some elements were acquired directly during the days of verification while for other aspects the Company reserved the right to produce subsequent integrations (submitted with note n. 845.22 of November 4, 2022).

Subsequently, the information was updated and integrated due to the progressive implementation of the planned improvement measures or in response to requests for information from the Office. In particular, with note prot. 55088 of March 31, 2023, the Office requested Wind Tre to provide a list of purchase proposals coming from its sales network that have determined the activation of electronic communication services during the period from March 6, 2023, to March 13, 2023, inclusive, divided between "consumer" and "business," detailing some specific elements; at the same time, the Company was requested to provide clarifications regarding what was acquired during the inspection assessment and the subsequent integration of the reservations. From this overall investigation, some profiles emerged that the Office deemed potentially configurative as unlawful processing of personal data. Below, the profiles found and the outcome of the evaluations carried out after the defensive phase are summarized, referring for details to the initiation act of the procedure dated November 25, 2023, prot. no. 158162, as well as to the defensive memorandum submitted by Wind Tre on January 12, 2024, and the hearing minutes of the party dated September 5, 2024, which are intended to be fully referenced here.

1.1 Use of numbers not registered with the ROC (Register of Communication Operators)

During the inspection assessment (see minutes of October 10, 2022), Wind Tre stated that partners, before being contracted, undergo a pre-qualification process and are subsequently monitored annually with a self-assessment questionnaire and possible audits. Subsequently, the Company, at the specific request of the Office, described the methods of acquisition and verification of the numbers used by partners to make promotional calls (see attachment 2, letter h to the note of May 5, 2023):

- telesellers must communicate in advance the numbers used, and Wind Tre verifies them with the ROC; the number is then acquired in the CM (Campaign Management) system with independent entry by the partner;
- retail points upload the outgoing numbers along with a document certifying registration with the ROC; subsequently, the system "performs a check directly with the ROC blocking the upload for numbers not compliant with the checks."

In the same note of May 5, the Company responded to the Office's request to produce the list of purchase proposals originating from its sales network that led to the activation of electronic communication services during the period from March 6, 2023, to March 13, 2023, inclusive. The Office verified the data reported in the file related to the consumer clientele, noting that many of the calling numbers were not present in the ROC by querying the search system available at the link <https://www.agcom.it/numerazionicallcenter>. Therefore, with note prot. 92564 of June 13, 2023, the Office requested to "produce the documentation certifying registration with the ROC (indicating the registered numbers with respective dates)" for 19 specific partners. The Company responded with note no. 544.23 of June 27, 2023, attaching "the documentation certified by the ROC, produced by the partners." From an examination of this documentation, many of the numbers used by the partners were found to be registered with the ROC on dates subsequent to those on which the promotional calls that led to the activation of the contracts were made.

In the defensive phase, however, the Company clarified that the documentation produced only contained the latest registration present in the ROC since the consultation of this register does not show the history of previous registrations but only the latest update. Therefore, it proceeded to attach, for each of the partners in question, the documentation certifying the original registration, which occurred prior to the telephone contacts.

The clarifications and documentation produced in the defensive phase allow for overcoming the objections raised in the initiation act of the procedure. For this profile, therefore, no violations are found.

1.2 Ability to prove the consent of the data subjects for promotional purposes and validity of the recorded consents

During the inspection assessment (see minutes of October 11, 2022), a list of contracts activated by the partners in September 2022 from cold lists was examined; finding that 15 of these contracts were activated on numbers different from those provided for the promotional campaign, clarifications were requested. The Company responded with the note of integration of the reservations dated November 4, 2022 (in the document called "attachment G") indicating, for each of the 15 numbers, the partner that made the call, the date of the last contact, and the calling number; for each number, it also attached IP timestamps to document the consent.

In order to ascertain the lawfulness of the processing related to the acquisition of such data by the partners, the Office requested to provide "also the legends related to the timestamps, to interpret the consent fields reported in the tables, as well as the respective formulas for requesting consent and the information provided to the data subjects at the time of collecting such consents."

The Company responded on May 5, 2023, reporting, for each contacted number, the legend of the respective timestamp without, however, attaching a copy of the consent request formulas and the information provided to the data subjects at the time of collection; therefore, the Company was requested to supplement this information, which was finally transmitted with note dated June 27, 2023. From the examination of the aforementioned attachment G, the following emerged:

1.2.1 Evidence partner XX

In points 1 to 5 of attachment G, it was found that partner XX had activated contracts by contacting 5 numbers extracted from a list.

carried out by XX S.r.l. based in Moldova through the website www.listeprofilate.com. On February 22, 2024, the Office proceeded to verify the website www.listeprofilate.com and the related privacy notice, finding that the data controller, XX S.r.l., had not appointed a representative in the EU as required by Article 27 of the Regulation; this verification was conducted by accessing the website www.listeprofilate.com both in the version published online on February 22, 2024, and in the version that was present on www.webarchive.org on earlier dates (January 29, 2022, and June 9, 2023). Furthermore, the notice indicated retention periods of 24 months for promotional purposes and 12 months for profiling, but the timestamp in point 1 of Annex G reported an "expire" date of 3 years after collection. The data, collected between July and December 2020, were indeed used to activate contracts in September 2022. Noting these critical issues, the Office, with a note dated March 31, 2023, requested to "describe the checks carried out on partner XX both at the accreditation stage and at the time of authorization of the lists used for the promotional campaign that led to the activation of the contracts related to the [5] numbers." The Company responded on May 5, 2023 (see Annex 2 to note no. 379.23, point e) stating that it had obtained documentation from the partner before authorizing the use of the cold list. The Office then, with a note dated June 13, 2023, requested Wind Tre to present the documentation related to such checks. With a note dated June 27, 2023 (see Annex 7 to note no. 544.23), the Company produced a notice that, however, was related to XX SAS based in Aix-en-Provence (France), the contractual documentation related to agreements with XX S.r.l.s., and the proof of consent collection related to websites other than www.listeprofilate.com (documentation that thus had no relevance to the list acquired from XX S.r.l.). Therefore, the Office contested to Wind Tre, with the initiation of the procedure, that the consents of the data subjects were not adequately proven and that the critical issues identified on the data collection site could have been easily verifiable by Wind Tre during the preliminary accreditation of the partner. In its defense, the Company, regarding

the use of the numbers after 24 months from collection, stated that partner XX would provide proof of the "renewal of consents for the indicated numbers" and attached the new timestamps from the partner showing consent release dates between December 13, 2021, and November 28, 2022. Instead, regarding the contested unsuitability of the partner due to the lack of a representative in Europe, the Company transmitted the privacy notice of the website www.listeprofilate.com provided by the partner, in which the representative in Europe is indicated. However, this notice does not provide any date and is therefore not suitable to prove that this requirement was present at the time of the partner's accreditation by Wind Tre, also considering that the official checks had nonetheless found this deficiency. For these reasons, the observations made to the Company in the initiation of the procedure are not surmountable, and the violation of Articles 5, paragraph 2, 24, and 28 of the Regulation is confirmed due to the inability of the data controller to comply with the obligation to demonstrate compliance with the rules (accountability) and for the inadequate control over the processor for the purposes of carrying out promotional campaigns. Furthermore, considering that the consents thus collected by the partner could not be considered lawful, the violation of Articles 6, paragraph 1, and 7 of the Regulation, as well as Article 130 of the Code, is also confirmed.

1.2.2 Evidence from partner XX

In points 6 to 8 of the aforementioned Annex G, three numbers used by XX S.r.l. for the activation of contracts were reported, and the source of the data was indicated as the list formed from the site <https://...>; for one of these numbers, consent was reported as acquired on 04/16/2020; based on what was indicated in the notice, the data should have been retained for 24 months, but the number was contacted by the partner on 09/30/2022. Again, the Office requested Wind Tre to "describe the checks carried out on partner XX Srl at the time of authorization of the lists used for the promotional campaign that led to the activation of the contracts related to the numbers: XX, XX, XX." The Company responded on May 5, 2023 (see Annex 2 to note no. 379.23, point f) stating that it had obtained documentation from the partner before authorizing the use of the cold list. At the request of the Office, with a note dated June 27, 2023 (see Annex 8 to note no. 544.23), the Company produced the privacy notice of XX S.r.l. and the images related to the consent collection screens used on the web. In its defense, the Company stated that the privacy notice of XX authorized by Wind Tre in 2020 was different from the one currently published and indicated that consent was valid until revoked by the user. Again, it is noted that the Company was not able to immediately provide evidence of the treatments carried out: several communications were indeed necessary to obtain the documents, but only in the defense phase was the notice presented to the user at the time of data collection produced. Moreover, such a generic formulation of the data retention periods cannot be considered adequate because consent for marketing purposes is, indeed, valid until revoked but still within the time limits of retention established by the data controller and made known through the information notice. For these reasons, the observations made against the Company in the initiation of the procedure are not surmountable, and the violation of Articles 5, paragraph 2, and 24 of the Regulation is confirmed due to the inability of the data controller to comply with the obligation to demonstrate compliance with the rules (accountability) and due to the inadequacy of the checks carried out before acquiring the partner's list, considering that the unlawfulness regarding the data retention period was easily ascertainable by the data controller. Furthermore, considering that the consents collected by the partner could not be deemed lawful, the violation of Articles 6, paragraph 1, and 7 of the Regulation, as well as Article 130 of the Code, is also confirmed.

1.2.3 Evidence Partner XX

Partner XX was found to have used data acquired through the website www.vincosubito.it for which the data controller was XX srl. The information present on that site did not indicate the data retention period for promotional purposes; it stated that "Your personal data will be kept for a period not exceeding the purposes for which they were collected. We may retain your data for up to 10 (ten) years, or for the longest applicable limitation period, to demonstrate that we have obtained your consent, unless it is necessary to retain such data for a longer period and in accordance with applicable law. In any case, we will not process your data for marketing purposes for the entire period

mentioned. At any time, you can exercise your rights indicated below." In its defense, Wind Tre stated that the partner confirmed the retention times described in the information notice and added that the Company used them for a period not exceeding 24 months. Again, it must be noted that the inadequacy of the formulation, which does not allow the data subject to have correct information, renders the consent given by the latter invalid. For these reasons, the observations made against the Company in the initiation of the procedure are not surmountable, and the violation of Articles 5, paragraph 2, and 24 of the Regulation is confirmed due to the inability of the data controller to comply with the obligation to demonstrate compliance with the rules (accountability) and due to the inadequacy of the checks carried out before acquiring the partner's list, considering that the unlawfulness regarding the data retention period was easily ascertainable by the data controller. Furthermore, given that the consents collected by the partner could not be deemed lawful, the violation of Articles 6, paragraph 1, and 7 of the Regulation, as well as Article 130 of the Code, is also confirmed.

1.2.4 Numbering Without Verification

Among the numbers subject to verification, Wind Tre was asked to document the consent for the number XX; however, this number was not included in the aforementioned Annex G, and therefore Wind Tre was contested for not having documented the existence of prior consent to make the call. In its defense, the Company stated that it omitted the information due to a mere clerical error and produced a declaration from partner XX S.r.l. containing the timestamp of the consent given by the user. In this document, there is an entry "third-party consent" with two boxes marked "yes," but, lacking the corresponding legend, there is no certainty regarding the meaning of this documentary source, nor was any documentation provided for this purpose. For these reasons, despite the belated verification provided, the observations made against the Company in the initiation of the procedure are not entirely surmountable, and the violation of Articles 5, paragraph 2, and 24 of the Regulation is confirmed due to the inability of the data controller to comply with the obligation to demonstrate compliance with the rules (accountability). Furthermore, considering that the document produced shows that the data was acquired through the portal www.vincosubito.it, referring to what was described in the previous point, the violation of Articles 6, paragraph 1, and 7 of the Regulation, as well as Article 130 of the Code, is also confirmed.

1.2.5 Validity of IP Timestamps

In the initiation of the procedure, it was contested to the Company that in the proof documents of consent, included in Annex G, there were IP timestamps that presumably certified the registration dates to the respective sites from which the data was collected but did not necessarily document the date of release of the individual consents (which were differentiated by purpose). Indeed, while the granting of consent may coincide with registration on a website, it is always possible that subsequently such consent may be revoked or that consent not given at the time of registration may be modified at a later date; this circumstance, moreover, occurred in the case described above regarding partner XX, for which the Company stated that the consents had been used beyond the 24-month period because they were "renewed" by the partner. There was no trace of such potential modifications of the consent dating in the documents produced, nor could it have been otherwise since there were no fields capable of distinguishing the dating of individual consents from the date of registration for the service or website (the fields only report a value of the type YES/NO). Therefore, such documents certified, at most, the date of data collection but were not suitable to demonstrate with certainty the date of the individual consents. Moreover, as seen in relation to the evidence provided by partner XX, the user's consent had been renewed at a time subsequent to that documented with the registration, and no record of this circumstance had been kept. It should instead be noted that if the date of consent cannot be ascertained, it is also not possible to document that it was present at the time of the promotional contact since the documentation produced appears to be merely a static photograph of what was present in the systems at the time of extraction. In this regard, the Company, in its defense phase, limited itself to stating that "all partners have confirmed that the date present in the Time Stamp is the same as the date of data entry on the site by the user who provided consent for commercial contact. In fact, for such types of hot leads, no prior registration is

required on any site or portal." However, this statement seems likely to be the result of a misunderstanding since the numbers under examination—referring exclusively to those accounted for in the aforementioned Annex G and in subsequent communications—were all extracted from cold lists as declared by Wind Tre itself and as is evident from the documentation produced: the sites from which the data would have been collected are sites that require—at least apparently—a registration to obtain a service or to participate in contests, and the date of collection of personal data (which, as mentioned, sometimes exceeded 24 months) is not compatible with the 72-hour term imposed by Wind Tre for making calls to so-called "lead" numbers.

It must also be taken into account that, according to what was stated by Wind Tre, as of December 1, 2022—only for consumer customers—the Company has suspended the purchase of prospect lists (cold lists) from suppliers (purchased independently or from third parties as list providers); consequently, to date, the Company conducts promotional campaigns only on the customer base (customers and former customers) or on lead lists (hot lists), that is, generated from interactions on the web and social media to collect contacts of individuals interested in the Company's products and services. In this latter case, contact must occur within 72 hours of the user's expression of interest, and the collection of a lead contact is followed by an SMS to the user to ascertain their awareness.

For these reasons, the observations made against the Company in the initiation of the procedure are insurmountable, and it is confirmed—for the described conduct—the violation of Articles 5, paragraph 2, and 24 of the Regulation due to the inability of the data controller to comply with the obligation to demonstrate compliance with the rules (accountability) and for the inadequacy of the checks carried out prior to acquiring the partner's list, considering that the illegality related to the documentation of consent was easily ascertainable by the data controller. Furthermore, considering that the consents thus collected could not be considered lawful, the violation of Articles 6, paragraph 1, and 7 of the Regulation, as well as Article 130 of the Code, is also confirmed.

1.3 Promotional communications made in the absence of consent

During the on-site activity, several numbers of individuals who had submitted reports to the Guarantor were verified, the outcomes of which are reported in the minutes of October 11, 2022. On some positions, the Company provided clarifications during the investigation. In one case (file 133372—reporting XX), the defensive arguments were not sufficient to overcome the raised objections. In fact, the contact to the reporter was found to be present in the system, having been made by partner XX with subsequent registration of the number in the blacklist; Wind Tre was therefore asked to document the preliminary checks carried out on this partner, providing evidence of the original consent of the interested party. In a note dated November 4, 2022, Wind Tre communicated that in its systems all consents related to the interested user were denied since the activation date; the number had been used by partner XX using its own acquired lists, in turn, from supplier XX; concurrently, Wind Tre produced a response email sent to the reporter on March 22, 2022, in which it states that the user "does not appear to have been included in any commercial campaign of Wind Tre, but has passed into the lists of partner XX by virtue of the consent granted," adding that it had "revoked the consent." Regarding this case, it is highlighted that the consents were denied from the activation of the user, and Ms. XX had exercised opposition to Wind Tre also through a registered letter dated March 2, 2018 (related to another user but generally extended to all her active Wind Tre numbers).

Therefore, the interested party had never granted any consent and, indeed, had written in 2018 to complain about unwanted contacts. The Company, as mentioned, stated that the contact would have been made by partner XX based on consent granted to supplier XX. However, it should be remembered that consent granted to a partner, even if acting as a data processor, cannot override the denial explicitly expressed towards the principal, the data controller. In this case, Ms. XX had denied all optional consents since the activation of the mobile number and had even complained about receiving unwanted contacts; in this context, her will, and the related expectation, is evident. not to be contacted on behalf of Wind Tre, regardless of whether the interested party subsequently granted consent to a third party. This is because the specific denial expressed towards the data

controller prevails over the general consent given to the third party, and thus it is the responsibility of the data controller, once the list is received, to verify that it does not contain data of individuals who have expressed the will not to be contacted on behalf of Wind Tre. If this were not the case, it would be very easy to circumvent any denials from the interested parties, making it impossible for them to assert their right not to receive unwanted contacts. For these reasons, the observations made to the Company in the initiation of the proceedings are insurmountable, and the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, and 7 of the Regulation, as well as Article 130 of the Code, is confirmed, since the processing of the complainant's data for promotional purposes was carried out in the absence of consent.

1.4 Calls made to numbers not authorized by Wind Tre.

During the investigation, Wind Tre was asked to produce the list of purchase proposals from its sales network. In response to this request, the Company produced two files: "XX" for the consumer market and "XX" for the business sector. From the files related to the numbers authorized by Wind Tre (see attachment 4 to the note of June 13, 2023), there were 653,799 authorized numbers. From file XX, 3,402 numbers were called.

From the comparison between the called numbers and the authorized numbers, it was found that of the 3,402 called numbers, only 1,257 were also present among the authorized numbers; consequently, 2,145 numbers were called that were not authorized by Wind Tre. This occurred despite the Company's assurances regarding the aforementioned impossibility of activating contracts without going through the CM system (therefore without using previously authorized lists).

Furthermore, with note prot. 107208 of July 12, 2023, the Office requested the Ugo Bordoni Foundation (FUB) to compare the called numbers extracted from file XX with the registrations in the RPO made until January 31, 2023. In the file returned by the FUB, it was found that 344 numbers out of 3,402 called numbers were registered in the RPO. Of these 344 numbers registered in the RPO, only 121 were also present in the list of numbers authorized by Wind Tre.

In this regard, in the defense memorandum, the Company clarified that "the authorized numbers represent only a part of the campaigns carried out and the partners involved between February/March 2023, while the 3,402 contracts XX represent the entire production of Wind Tre for the week under analysis"; this is possible because the Company conducts many of the promotional campaigns towards its customer base using its own lists that do not require authorization or control in the Register of Oppositions.

In light of the justifications provided, this aspect can be considered archived.

1.5 Guarantee measures adopted by Wind Tre

During the inspection and with numerous subsequent communications sent spontaneously, the Company provided updates regarding the organizational and technical changes implemented to curb unwanted contacts. In particular, Wind Tre communicated the following:

- Telemarketing activities are centralized through the system called Campaign Management (CM), already described during the investigation that led to the measure adopted by the Guarantor on July 9, 2020, against Wind Tre; through this system, the Company tracks the calls made by partners and their outcomes; the integration of the partners' CRM (Customer Relationship Management) systems via API has been planned, in order to eliminate the operations of independent entry by partners and avoid sending lists to partners by Wind Tre (procedure available to all partners since December 31, 2022, as confirmed by note no. 217.23 of March 8, 2023);
 - In case of revocation of consent expressed during a call, the system allows the operator to record the will of the interested party and to report the same information in the blacklist;
 - Training activities on the processing of personal data have been organized for employees and subsequently extended to partners;
 - A page on the corporate website has been dedicated to informing users about nuisance calls with the possibility of submitting reports directly to Wind Tre (which has conducted subsequent checks);
 - The Company participated in the Agcom working group to combat CLI (Calling Line Identification) spoofing and has made available to its customers the app "Please don't call" to filter nuisance calls.
- Furthermore, since the end of March 2023, the Company has activated for its customers the blocking

of international calls with CLI not compliant with ITU-T E.164 recommendations, in order to protect them from CLI spoofing activities; in this regard, the Company specified, by way of example, that it has blocked approximately half a billion calls per month since then, conveyed by foreign carriers using altered numbers.

- The Company, highlighting a significant economic investment, has created a system for controlling the supply chain, called "from contact to contract," consisting of a series of automatic checks aimed at verifying compliance with remote contact rules in order to reconstruct the consent-contact-contract chain; the Company added that it has initiated a study project to ensure tracking with blockchain technology;

cliente in fase di accesso all'area riservata. Inoltre, la Società ha implementato ulteriori misure di sicurezza per garantire che l'accesso ai dati dei clienti sia effettuato in modo corretto e sicuro, evitando il ripetersi di simili incidenti.

In considerazione delle misure adottate e della natura isolata dell'evento, si ritiene di poter archiviare la contestazione, in quanto non è stata riscontrata una violazione sistematica delle normative sulla protezione dei dati.

PROCEDIMENTO 173401

Con atto di avvio del procedimento prot. n. 25395 del 29 febbraio 2024, è stata contestata a Wind Tre la violazione dell'art. 6, par. 1, lett. a) del Regolamento e dell'art. 130, comma 2 del Codice per l'invio di un sms promozionale indesiderato. In particolare, il reclamante aveva lamentato, il 18 ottobre 2021, la ricezione di un sms indesiderato. In sede di istruttoria, la Società aveva chiarito che l'invio, che aveva riguardato solo il reclamante, era avvenuto a seguito di un'anomalia tecnica dovuta al fatto che l'utenza assegnata al reclamante era stata dismessa da un precedente intestatario senza disabilitare i consensi da quest'ultimo prestati. Successivamente, il 9 ottobre 2023, lo stesso reclamante ha lamentato la ricezione di un nuovo sms, nonostante le assicurazioni fornite da Wind Tre circa il recepimento in apposita black list della volontà di non essere contattato. In tale occasione la Società ha dichiarato che l'invio era avvenuto per un errore umano. Solo in fase difensiva, Wind Tre ha meglio descritto le circostanze che avrebbero determinato l'errore umano chiarendo che la formazione del campione di destinatari era avvenuto estraendo dal database una serie di segmentazioni cui sono stati attribuiti precisi requisiti: tra questi la presenza del consenso alla ricezione di messaggi promozionali. Purtroppo l'operatore, nell'effettuare i successivi passaggi, ha collegato tali requisiti ad una sola delle province interessate dalla campagna includendo così, erroneamente, anche i clienti non consensati per tutte le altre province. La Società ha comunque aggiunto che tale piattaforma di realizzazione delle campagne è stata successivamente sostituita da un nuovo sistema che escluderà automaticamente tutte le utenze prive di consenso evitando il ripetersi di errori analoghi. Inoltre, nell'immediatezza e al fine di porre rimedio all'errore, la Società ha provveduto ad informare i clienti interessati dall'evento e, finché non è stata implementata la nuova piattaforma, ha effettuato dei controlli a campione per la verifica dei consensi risultanti nel CRM aziendale. Alla luce dei nuovi chiarimenti forniti - tenuto conto delle misure adottate per evitare il ripetersi di eventi analoghi - si ritiene di poter archiviare la contestazione in ragione del fatto che l'evento è stato causato da un errore non prevedibile dell'incaricato senza conseguenze dannose per l'interessato.

CLIENT, with respect to the data present in the CRM, even in the case of users not registered in the personal area. Overall, it is observed that the described conduct—consisting of the removal of security controls for access without adequate verification of the consequences—resulted in unauthorized access to the data of an unsuspecting client. Therefore, considering the technical measures adopted by Wind Tre at the time of the event to be inadequate, it is deemed that there has been a violation of Articles 5, paragraph 1, letter f) and 32 of the regulation.

Regarding the contested failure to notify the Guarantor of the personal data breach, the Company stated that, in addition to having promptly remedied the anomaly, it initiated a dialogue with the complainant, informing them of what occurred and asking them to destroy copies, if any in their possession, of the data of the third party to which they had accidentally gained access. Having done this, the Company, not perceiving a serious detriment to the interested party, deemed it unnecessary

to notify the Guarantor.

In this regard, it is noted that Article 33 of the Regulation provides that notification to the Guarantor must be made if a personal data breach occurs, unless it is unlikely that such a breach presents a risk to the rights and freedoms of natural persons. The severity of the detriment is relevant only in cases where it must be assessed whether to communicate the event to the interested party. (1) In this specific case, therefore, at least notification to the Authority would have been necessary, and thus the violation of Article 33 of the Regulation is also confirmed.

2. CONCLUSIONS

As a result of the complex investigative activity described above, and taking into account the arguments presented during the defense phase, some potential profiles of violation, specifically described in the previous paragraphs, have been archived, while for other behaviors, referred to below, the contested violations in the initiation of the procedure have been deemed confirmed.

This particularly refers to the ability to prove possession of suitable consents for making promotional calls to recipients drawn from the so-called "cold lists" of partners, as well as the use for promotional purposes of the data of Ms. XX in the absence of suitable consent (file 178557). Similarly, the violations contested in the initiation of the procedure prot. no. 158163 of November 25, 2023, regarding file 262138, are confirmed, due to the inadequacy of the security measures adopted at the time of the described event and for the failure to notify the Guarantor of the occurrence of a personal data breach.

For the reasons stated above, Wind Tre's responsibility regarding the following violations is therefore deemed established:

- a) Articles 5, paragraph 2, 24, and 28 for the inability of the data controller to comply with the obligation to demonstrate compliance with the rules (accountability) and for inadequate control over the processors for the treatments aimed at carrying out promotional campaigns;
- b) Articles 5, paragraph 1, letter a), 6, paragraph 1, and 7 of the Regulation as well as Article 130 of the Code because the treatments for promotional purposes, carried out in the context of the violations described regarding the legality of consents, were found to lack a suitable legal basis;
- c) Articles 5, paragraph 1, letter f) and 32 of the Regulation for the inadequacy of the technical measures adopted at the time of the reported event to enable access to the personal area of users;
- d) Article 33 of the Regulation for the failure to notify the Guarantor of the occurrence of a personal data breach.

However, it is worth making some considerations regarding the conduct of the data controller and the corrective measures adopted even before the initiation of the proceedings. It must first be acknowledged the significant activity carried out by Wind Tre aimed at uncovering and combating the phenomenon of unwanted telemarketing, along with the equally necessary considerations regarding the fruitful dialogue and collaboration that the Company has long undertaken with the Authority.

From the outcomes of the initiated procedure, in fact, it emerges that the Company has implemented interventions and procedures suitable for creating a framework of significant enhancement of guarantees for the interested parties compared to what emerged following provision no. 143 of July 9, 2020. Regarding the carrying out of promotional activities, in fact, the Company has acknowledged having changed its operational methods, especially concerning the processing of personal data of consumer clients, discontinuing the use of cold lists from December 1, 2022. The Company has also made significant modifications to its systems to optimize the control of the supply chain of processors operating in telemarketing and teleselling activities, independently implementing the measures provided for by the relevant code of conduct before its actual entry into force. Significant and worthy of attention are also the solutions to combat CLI spoofing adopted spontaneously for its customers through the app Please Don't Call and the blocking of international calls with CLI not compliant with ITU-T E.164 recommendations. Measures that only recently the legislator (2) has imposed in a generalized manner, delegating to the Authority for Guarantees in Communications the task of introducing the relevant technical measures.

Such important interventions, many of which also required substantial investments or have...

****ORDINANCE FOR THE APPLICATION OF ADMINISTRATIVE SANCTION****

Given the assumption, in a completely autonomous manner, of a burden not yet imposed on the generality of other competitors, careful consideration must be given to the overall assessment of the conduct, bearing in mind that the contested promotional activities carried out based on consents not lawfully collected, as well as the measures adopted at the time for supply chain control, date back to the end of 2022.

Regarding the violations that emerged from procedure 262138, it is noted that the modification made by the Company for the purpose of simplifying the user experience was implemented without due diligence; this is because the insertion, during the registration phase by the customer, of a 9-digit code, without further checks by the holder, can lead to events of the type reported, as a typographical error is possible, as occurred in this case. The Company, however, has acknowledged that it intervened promptly to introduce corrective measures aimed at preventing the recurrence of similar events. It should also be noted what was stated by Wind Tre, aware of the criminal consequences for false declarations, regarding the uniqueness of the event that would have occurred only due to the coincidence of the typographical error by the complainant and the absence of a previous registration in the personal area by the account holder.

Having established the unlawfulness of Wind Tre's conduct concerning the treatments examined, and considering that all the violations identified have already been remedied during this investigation, there are no grounds for the adoption of corrective measures against the holder; however, regarding the violations that occurred, it is necessary to adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Wind Tre of the administrative pecuniary sanction provided for by Article 58, paragraph 2, letter i) and 83 of the Regulation.

By virtue of what is provided for by Article 154-bis, paragraph 3 of the Code, this provision is published on the Authority's website (see also Article 37 of the internal regulation of the Guarantor No. 1/2019).

Finally, it is noted that the conditions referred to in Article 17 of the Guarantor Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, exist for the annotation of the violations identified here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

3. **ORDINANCE FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION**

Based on the above, various provisions of the Regulation and the Code have been violated in relation to connected treatments carried out by Wind Tre, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same treatment or connected treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for companies, at 4% of the annual worldwide turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction, which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relevant amount.

In compliance with this provision, based on the information available in the latest financial statement (registered as of December 31, 2023), the second hypothesis provided for by the aforementioned Article 83, paragraph 5 applies, and thus the maximum applicable penalty is quantified at 173,760,000 euros. The following aggravating circumstances must be considered:

1. The negligent nature of the violations, as the conduct was carried out in the absence of the diligence that would commonly be expected from a holder processing data on a large scale and regarding issues, such as the selection of list suppliers, on which the Guarantor has repeatedly expressed itself clearly; negligent conduct was also observed concerning the modifications made to the registration system in the personal area without adequately assessing the potential risks (Article 83, paragraph 2, letter b), of the Regulation);

As mitigating factors, it is deemed appropriate to take into account:

2. The low level of damage suffered by the interested parties (Article 83, paragraph 2, letter a), of the Regulation);

3. The measures adopted by the data controller that led to a radical change in the operational methods adopted at the time of the violations (Article 83, paragraph 2, letter c), of the Regulation);

4. The degree of cooperation with the supervisory Authority that led, in relation to procedure 262138, to promptly ending the violation and, in the case of treatments for promotional purposes, to maintaining constant dialogue with the Authority for the definition of best application practices, in addition to Wind Tre's active participation in the working group that led to the presentation of the Code of Conduct regarding telemarketing and teleselling (Article 83, paragraph 2, letter f), of the Regulation);

5. of the categories of data affected by the violations, as it involved common data (art. 83, par. 2, lett. g), of the Regulation). In a comprehensive balancing of the rights of the data subjects and the freedom of enterprise, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction. Therefore, it is believed that - based on the complex of the elements mentioned above - an administrative sanction of payment of an amount of euro 347,520.00 (three hundred forty-seven thousand five hundred twenty/00) should be applied to Wind Tre, equivalent to 0.2% of the maximum administrative fine identified with reference to the provisions of art. 83, par. 5, of the Regulation, considering that 4% of Wind Tre's turnover, based on the data reported in the latest financial statement, is over 20 million euros. In this context, it is also believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16 of the internal regulation of the Guarantor no. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the risk elements for the rights and freedoms of the data subjects arising from the use of lists formed by third parties without a prior accurate verification of the legality of the consents given, considering that the Company has ceased the use of cold lists only from December 1, 2022, for the consumer market.

ALL OF THE ABOVE STATED, THE GUARANTOR

pursuant to art. 57, par. 1, lett. a and lett. f), of the Regulation, declares the processing described in the terms of the motivation carried out by Wind Tre S.p.A., based in Milan, via Monte Rosa no. 91, tax code 02517580920; consequently

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation, Wind Tre S.p.A., represented by its legal representative, to pay the sum of euro 347,520.00 (three hundred forty-seven thousand five hundred twenty/00) as an administrative pecuniary sanction for the violations indicated in the motivation; it is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

ENJOINS

the aforementioned Company, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of euro 347,520.00 (three hundred forty-seven thousand five hundred twenty/00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981;

DISPOSES

a) pursuant to arts. 154-bis of the Code and 37 of the internal regulation of the Guarantor no. 1/2019, the publication of this provision on the Guarantor's website;

b) pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the internal regulation of the Guarantor no. 1/2019, the publication of the injunction order on the Guarantor's website;
c) pursuant to art. 17 of the internal regulation of the Guarantor no. 1/2019, the annotation in the internal register of the Authority, provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree of September 1, 2011, no. 150, an opposition to this provision may be proposed to the ordinary judicial authority, with an appeal filed with the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi

1) See also the clarifications provided by the EDPB in guidelines 9/2022 on the notification of personal data breaches pursuant to the General Data Protection Regulation, adopted on March 28, 2023.

2) Legislative Decree of March 24, 2024, no. 48, amending Legislative Decree no. 259/2003 (Code of Electronic Communications) has introduced, for Agcom, the obligation to require telecommunications operators to block calls made using CLI spoofing. On this basis, in the meeting of November 13, 2024, Agcom initiated a public consultation (Resolution no. 457/24/CONS) to introduce new rules aimed at combating fraud and wild telemarketing through measures that prevent so-called CLI Spoofing.